

HOUSE BILL 214

By Rudd

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 10, Chapter 7, Part 5; Title 37; Title 38; Title
49; Section 55-8-151 and Title 62, relative to
school safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-4202, is amended by deleting subdivision (6) and substituting instead the following:

(6) "School resource officer" means:

(A) A law enforcement officer, as defined in § 39-11-106, who is in compliance with all laws, rules, and regulations of the peace officers standards and training commission and who has been assigned to a school in accordance with a memorandum of understanding between the chief of the appropriate law enforcement agency and the LEA or in accordance with § 49-6-820;

(B) A retired law enforcement officer who is retired from a federal, state, or local law enforcement agency, and who has been assigned to a public school by the director of schools or by the director of the public charter school; or

(C) An honorably discharged veteran of the United States armed forces who has been assigned to a public school by the director of schools or by the director of the public charter school;

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 6, Part 42, is amended by adding the following as a new section:

(a) LEAs and public charter schools may employ a school resource officer, as defined in § 49-6-4202(6)(B) or (C), to provide security on school premises.

(b)

(1) Each local board of education and public charter school governing body that intends to employ a school resource officer, as defined in § 49-6-4202(6)(B) or (C), shall adopt a policy that outlines the duties, responsibilities, and authority of a school resource officer, as defined in § 49-6-4202(6)(B) or (C), including any limitations on such a school resource officer's authority.

(2) Each policy must ensure compliance with the federal Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. 1232g); § 10-7-504; the Data Accessibility, Transparency and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant privacy laws.

SECTION 3. Tennessee Code Annotated, Section 49-6-815(a), is amended by deleting subdivisions (2) and (3) and substituting instead the following:

(2) A school resource officer, as defined in § 49-6-4202, is permitted to possess and carry a firearm on the grounds of the school at which the person is assigned.

SECTION 4. Tennessee Code Annotated, Section 49-6-820(b)(7), is amended by deleting the language "§ 49-6-815(a)(3)" and substituting instead the language "§ 49-6-815".

SECTION 5. Tennessee Code Annotated, Section 49-6-815(b), is amended by deleting subdivision (2) and substituting instead the following:

(2) Pursuant to subdivision (a)(2), the person must:

(A) Be authorized to possess and carry a firearm pursuant to § 39-17-1351;

(B) Except for a person assigned to a school in accordance with § 49-6-820, have the joint written authorization of the LEA's director of schools, in conjunction with the principal of the school at which the person is assigned, to carry or possess a firearm on school grounds; and

(C)

(i)

(a) Be a law enforcement officer, or have prior service as a law enforcement officer, as defined in § 39-11-106; or

(b) Be an honorably discharged veteran of the United States armed forces;

(ii) Comply with all laws, rules, and regulations of the POST commission, as applicable; and

(iii) Have successfully completed forty (40) hours in basic training in school policing as required by § 49-6-4217. Any such training must be approved by the LEA and the cost of the training, firearm, and ammunition is at the expense of the person seeking authorization to possess and carry a firearm on school grounds, not the LEA of the school at which the person is assigned.

SECTION 6. Tennessee Code Annotated, Section 49-6-815(k), is amended by deleting subdivision (2) and substituting instead the following:

(2) If a school resource officer is not assigned to the school, or if the school resource officer assigned to the school is not employed by a law enforcement agency, the law enforcement agency with jurisdiction over the school.

SECTION 7. Tennessee Code Annotated, Section 37-1-131(a)(2)(F), is amended by deleting the language "the school resource officer" and substituting instead the language "a school resource officer, as defined in § 49-6-4202(6)(A)".

SECTION 8. Tennessee Code Annotated, Section 37-1-131(c)(5), is amended by deleting the language "The school resource officer" and substituting instead the language "A school resource officer, as defined in § 49-6-4202(6)(A)",.

SECTION 9. Tennessee Code Annotated, Section 49-6-3051(d), is amended by deleting the language "the school resource officer" and substituting instead the language "a school resource officer, as defined in § 49-6-4202(6)(A)".

SECTION 10. Tennessee Code Annotated, Section 49-10-1304(h)(3), is amended by deleting the language "as defined in § 49-6-4202" and substituting instead the language "as defined in § 49-6-4202(6)(A)".

SECTION 11. Tennessee Code Annotated, Section 55-8-151(c)(2), is amended by deleting the language "§ 49-6-4202" and substituting instead the language "§ 49-6-4202(6)(A)".

SECTION 12. This act takes effect July 1, 2025, the public welfare requiring it.